GRAND TRAVERSE COUNTY
BOARD OF COMMISSIONERS
LEGISLATIVE & BUDGETARY BRIEF FOR THE PUBLIC RECORD

Date of Submission: October 7th, 2026

Subject: Policy Proposal: Fiscal Protections and Regulations for Automated Vehicle-Tracking Infrastructure

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To: Grand Traverse County Board of Commissioners (400 Boardman Avenue, Traverse City, MI)

I. EXECUTIVE PREAMBLE & CONTEXTUAL CONTINUITY

This framework serves as a structured, actionable extension of the public comments presented before this Commission on September 16, 2026. The core principles of citizen privacy, fiscal accountability, and local oversight remain absolute. However, translating abstract constitutional concerns into real-world policy requires shifting from behavioral mandates onto concrete, property-based controls. Rather than attempting to micromanage the law enforcement duties or daily schedules of elected county officials—which introduces substantial risk of unconstitutional overreach and immediate pushback from corporate counsel—the mechanisms established herein rely entirely on this Board's undisputed statutory authority over county-owned physical assets, computing networks, and corporate contract authorizations.

By refining the administrative strategy to govern county property rather than policing individual personnel actions, Grand Traverse County can insulate its taxpayers from unvoted software liabilities, block predatory corporate procurement tactics, and safely protect regional autonomy. This brief provides the definitive, factually accurate legislative language required to fulfill the true intent of the originally proposed safeguards while remaining fully unassailable under current Michigan law. This revised edition incorporates explicit exceptions for state-sanctioned emergency alerts (such as AMBER Alerts) and hardcoded definitions to neutralize out-of-state corporate grant funding maneuvers, ensuring the Board's fiscal control remains supreme.

Real-world right-of-way audits published on October 1st, 2026, demonstrate that private

ALPR vendors routinely engage in **unpermitted infrastructure deployment**, installing active solar-powered tracking hardware on public utility property without legislative authorization, public disclosure, or municipal permits. Recent national enforcement events in counties like St. Lucie, Florida exposed massive networks of **unpermitted 'rogue' surveillance cameras** installed on public right-of-ways without county knowledge, forcing infrastructure crews to physically bag and decommission the unauthorized tracking modules. Because out-of-state corporate entities utilize private grants, corporate subsidies, and hidden non-disclosure agreements to bypass centralized county board oversight, this Board exercises its absolute legislative custody over county property under MCL 46.11(l). We hereby enforce a comprehensive, line-item funds blanket ban prohibiting the installation, maintenance, or validation of any proprietary software interfaces on county-funded laptops, regardless of whether the underlying software license was funded by external private grants or third-party town contracts.

II. THE GRAND TRAVERSE COUNTY SYSTEM BASELINE & SYSTEM ARCHITECTURE

A comprehensive operational review indicates that Grand Traverse County's technological infrastructure has already faced incremental, unvoted penetration. Currently, a footprint of **28 corporate-leased cameras** is capturing roughly **445,957 data reads a month**, allowing over **1,400 outside agencies nationwide open access to local transit routes**. This network has expanded outside centralized county oversight by utilizing a highly fragmented, township-by-township marketing structure. Specifically, corporate automated license plate reader (ALPR) vendors have cut independent equipment leases directly with township boards—including Garfield, East Bay, and Peninsula townships. A stark, localized example of this penetration sits directly at the high-volume intersection of **South Airport Road and Barlow Street**. This specific hardware endpoint systematically catalogues, logs, and indexes local commuters—including regional working-class citizens traveling to and from commercial jobs at neighboring hubs like **Gordon Food Service**—every single day. Rather than executing targeted law enforcement, this network functions as a mass dragnet tracking innocent American citizens driving to work, taking their kids to school, and buying groceries, subverting the sacred presumption of innocence. The City of Traverse City and the Downtown Development Authority explicitly rejected downtown contracts, yet township side-deals circumvented that democratic choice, trapping local residents.

Under the false assumption that county-level assets will automatically absorb the operational burdens of data management, private software vendors have lobbied local municipal trustees to execute these contracts independently. This creates an unvoted backdoor financial loophole: while this Commission has never authorized a countywide capital layout for this hardware, county-funded dispatch personnel, server capacities, and **mobile data terminals (MDTs)** are actively utilized to process corporate alerts and execute historical searches. This creates an unvoted backdoor subsidy that redirects local administrative resources away from immediate, critical county infrastructure deficits. Instead of preserving vital municipal assets, public capabilities are squandered while foundational regional networks actively fail—including the compounding subsurface drainage erosion and catastrophic culvert collapse along the **Beitner Road / Beitner Bridge corridor**, the severe environmental hazards and emergency closures caused by the **South Airport Road sewer main rupture**, the commercial disruptions stemming from the **Garfield Road water main failure** and system-wide **SCADA network pump crash**, the structural beam corrosion requiring emergency tax-funded stabilization at the **Grand Traverse Governmental Center**, and the systemic foundational shifting cracking the walls of the aging, **50-year-old County Jail facility**.

This brief establishes the mechanism to permanently close this backdoor subsidy. Furthermore, core statements from vendors claiming high data security have been exposed by recent class-action litigation (Schulte v. Flock Group Inc.) proving that corporate employees routinely access private camera feeds near community hubs, playgrounds, and daycares without permission. **This database tracking model exposes the county to profound civil liabilities**; for instance, real-world national litigation has already documented cases like that of Officer Josepher Crutchfield, who was formally arrested after abusing ALPR tracking systems **382 times** to stalk an individual.

INTERGOVERNMENTAL DATA INFRASTRUCTURE RISK WARNING:
Pursuant to documented national investigative findings published on September 30, 2026, private ALPR networks are structurally integrated with automated backend Application Programming Interfaces (APIs) that replicate, duplicate, and migrate local vehicle transit logs onto out-of-state federal server architectures (such as the **Houston-HIDTA database**) without explicit local legislative approval. Once mirrored, this data is insulated from state public records auditing (FOIA) and federal disclosure mandates via complex multi-jurisdictional board loopholes. To prevent the unauthorized extraction of Grand Traverse County resident data and protect public transparency rights, this Board must execute a preventative service-level cutoff, utilizing its statutory authority under MCL 46.11(m) to bar all county-funded personnel and infrastructure from validating or supporting unvoted, municipal-level automated hardware contracts. Investigative records reveal that the Houston-HIDTA center explicitly executed a **$306,800 contract with Recruitful LLC** to build and maintain an integration platform dedicated to seamlessly cloning and migrating data out of third-party platforms like FLOCK into this federal system.

III. PUBLIC ASSET ACCOUNTABILITY: PHYSICAL ROADS VS. DIGITAL SURVEILLANCE

A core metric of responsible local governance is the strategic alignment of taxpayer revenues with urgent physical safety needs. Public record discussions and resident testimony demonstrate that local infrastructure is facing compounding, immediate deficits that directly impact public safety and economic commerce. In Grand Traverse County, a primary example is the critical Beitner Road / Beitner Bridge corridor. This vital commercial artery and primary bypass between US-31 and M-37 faces compounding subsurface drainage erosion, aging bridge approaches, and high-volume heavy vehicle pavement wear. This vulnerability was fully realized in April 2026, when record-high floodwaters completely washed out the **Beitner Bridge underground culvert system**, forcing a catastrophic, full structural collapse that severed a major transit corridor for over **20,000 daily commuters.**

This infrastructure crisis extends beyond county roadways and deep into foundational public facilities and utility grids. Subsurface decay manifested aggressively along the **South Airport Road sewer main corridor**, where a massive lengthwise crack in a vital force main sent uncontained sewage breaching through the pavement and into the Boardman River, shutting down traffic and causing severe environmental hazards. Simultaneously, systemic network failures within the clean water infrastructure have severely disrupted local commerce. My place of work, Gordon Food Service**,** along with other commercial hubs went weeks of critically suppressed water pressure this summer, echoing broader county grid failures—such as the June 2026 SCADA network pump crash and the structural water main failure on Garfield Road—which forced emergency boil advisories and left local businesses struggling to maintain basic operations. Meanwhile, the **Grand Traverse Governmental Center** suffers from compounding water intrusion that has corroded its basement's foundational steel beams to the point of structural failure, requiring hundreds of thousands in emergency tax dollars just to prevent further collapse. Furthermore, an aging, **50-year-old County Jail facility** continues to face severe structural degradation, with shifting foundations triggering buckling floors and cracked walls. Allowing discretionary public staff hours, data networks, and corporate software authorizations to expand while essential drainage networks and arterial highways remain structurally compromised represents a fundamental misalignment of local budgetary priorities. Taxpayer funds must be preserved for physical concrete, steel, and pavement right here in local soil, rather than being redirected to cross-subsidize out-of-state technology subscriptions. Taxpayers should not be forced to underwrite infrastructure that monitors their daily routes and exposes them to false positives, which audits show can reach up to **70% in automated stolen vehicle alerts**, resulting in high-risk, catastrophic felony traffic stops at gunpoint.

IV. BINDING LEGISLATIVE AND BUDGETARY ACTION MEASURES

Note on Policy Consolidation & Support for Prior Submission: To translate the three budgetary actions and one supporting pillar proposed in the September 16 public comment into a legally airtight framework under Michigan law, those four original concepts have been compressed into two comprehensive, enforceable vehicles. Rather than passing separate, fragmented resolutions that risk unconstitutional overreach into the Sheriff's day-to-day personnel deployments, these two refined actions rely strictly on the Board's absolute power over county-owned property, hardware endpoints, and line-item appropriations under MCL 46.11.

To insulate this Commission from bad-faith litigation or claims of administrative overreach by third-party vendor counsel, this framework strictly separates the operational duties of the Sheriff's office from the physical property custody of the Board. Pursuant to settled Michigan law, while the Board does not manage daily law enforcement deployments, it maintains absolute, non-delegable authority over county-funded asset procurement, software licensing, and civilian information technology properties. The statutory and case law foundations authorizing these specific actions are cross-referenced below:

Statutory & Case Law Authority Matrix

Proposed Policy Mechanism	Michigan Statutory / Case Law Source	Core Power Granted to the Board
Endpoint Access Scrubbing (IT department directive to remove software keys from laptops)	**MCL 46.11(l)**	Grants the Board absolute legislative custody over the **care and management of county-owned property** and business concerns.
Mandatory Budgetary Rider (Prohibiting the use of county, state, or private funds for ALPR contracts)	**MCL 46.11(g)** ***Wayne County Sheriff v. Wayne County Board of Commissioners (1979)***	Establishes the Board's exclusive, non-delegable power over **line-item appropriations** and county budget allocations.
Service-Level Cutoff (Prohibiting county dispatch staff from processing township ALPR data)	**MCL 46.11(m)**	Empowers the Board to establish rules and regulations regarding the **business concerns and administrative interests** of the county.

Proposed Policy Mechanism	Michigan Statutory / Case Law Source	Core Power Granted to the Board
Ordinance Enforcement (Passing local regulations to govern automated vehicle tracking)	**MCL 46.11(j)**	Authorizes the Board to **pass ordinances and regulations** relating to purely county affairs.

PROPOSED ACTION 1: HARDWARE ENDPOINT SECURITY & DIGITAL ASSET ORDINANCE

Integration of Original Pillars: This single omnibus ordinance operationalizes Pillar 1 (Backend Fiscal Firewall), Pillar 2 (Zero-County-Labor Policy), and Pillar 3 (Centralized Auditing/Asset De-authorization). Instead of attempting to block network traffic at the building gateway router (which cruiser laptops bypass via standalone FirstNet cellular grids), this action targets the device endpoints directly. By completely stripping application keys, tokens, and browser credentials, it achieves the original labor mitigation and audit goals by making data access physically impossible.

Statutory Foundation: Pursuant to the Michigan County Boards of Commissioners Act (MCL 46.11(g), (j), (l), and (m)), the Board retains exclusive regulatory authority to approve all county expenditures, pass ordinances relating to county affairs, and maintain the general care and management of county property and business concerns. Under the Michigan judicial precedent established in Wayne County Sheriff v. Wayne County Board of Commissioners (1979), while an elected Sheriff holds operational autonomy over internal deputy assignments and law enforcement duties, the Board possesses absolute, exclusive power over line-item appropriations and county budget allocations. Taken together with statutory property custody, the Board is legally empowered to determine what funded applications, external databases, or third-party user interfaces are authorized to reside on its physical computing property.

Enforcement Mechanism: Cruiser laptops and mobile units utilize encrypted cellular grids (such as AT&T; FirstNet) that completely bypass local building gateway routers, rendering traditional network-level firewall blocks useless. To secure complete operational efficacy, the Board must regulate the hardware endpoint licenses directly. This ordinance orders the civilian Information Technology Department to permanently audit, scrub, and block all proprietary desktop applications, browser portal shortcuts, saved login credentials, and active database tokens from all county-owned devices.

FEDERAL JURISPRUDENTIAL COMPLIANCE AMENDMENT:
This Board notes that on October 1st, 2026, the United States District Court for the Northern District of Oklahoma ruled in United States v. Melisa Susan Kyle (Case No. 26-CR-00189-SEH) that warrantless historical database queries across private nationwide ALPR networks constitute 'indiscriminate mass surveillance' and violate the Fourth Amendment. The court established that bulk, multi-state data pulls spanning weeks approach illegal dragnet practices, overriding historical public-view exceptions. To insulate Grand Traverse County from immediate civil rights litigation, federal constitutional non-compliance, and the systematic suppression of evidence, this Board exercises its absolute property care and management powers under MCL 46.11(l) to strip all unconstitutional private database access keys and software credentials from county-owned mobile terminals.

Mandatory Budgetary Rider Text:

> "No public revenues, nor any federal, state, or private grant funds, donations, or third-party subsidies accepted by or distributed to any department of this county, shall be encumbered, transferred, or expended to purchase, lease, renew, or maintain user seats, software-as-a-service (SaaS) cloud subscriptions, or application programming interfaces (APIs) managed by third-party automated license plate reader (ALPR) vendors, specifically including Flock Group Inc. (d/b/a Flock Safety). Pursuant to the Board's exclusive authority over county finances and property under MCL 46.11, the Grand Traverse County Information Technology Department is hereby directed to audit all county-funded mobile data terminals (MDTs), network workstations, and mobile computing property, and permanently remove and prohibit the installation of any proprietary software interfaces, browser portal credentials, or database access tokens linked to third-party ALPR networks.
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> "**EXCEPTION PROTOCOL:** This prohibition shall not apply to the receipt of cross-jurisdictional emergency alerts routed exclusively through the Michigan Law Enforcement Information Network (LEIN), nor shall it prohibit temporary, supervisor-authorized endpoint data access restricted solely to the active duration of a state-validated AMBER Alert or a documented, immediate threat to human life."

PROPOSED ACTION 2: INTERGOVERNMENTAL COORDINATION RISK RESOLUTION

Integration of Original Pillars: This action fully addresses Pillar 4 (Intergovernmental Moratorium) from the September 16 brief. While township boards operate as independent corporate political entities and cannot be directly controlled by county ordinances, this resolution alters their economic calculus. By formalizing a complete service-level coordination cutoff, townships are explicitly warned that county personnel and dispatch networks will not provide backend labor to cross-subsidize independent town-level contracts, effectively isolating those hardware installations.

Statutory Foundation: While township and village boards operate as independent corporate political entities under Michigan law, their localized technology agreements cannot legally obligate county administrative staff or technical infrastructure. The Board maintains full statutory authority to define the baseline requirements for intergovernmental coordination and resource sharing under MCL 46.11(m).

Enforcement Mechanism: This resolution instructs the County Clerk to transmit a certified risk notice via registered mail to all township supervisors within Grand Traverse County borders. This notice establishes that county-funded dispatch personnel, data links, and automated processing networks will not provide backend labor or validation workflows to support independently procured township hardware, isolating those networks and breaking the vendor's financial assumptions.

Mandatory Resolution Text:

> "***BE IT FORMALLY RESOLVED***, that the Grand Traverse County Board of Commissioners notifies all township and village authorities within its geographical borders that independent technology contracts executed by local municipalities do not create an operational, personnel, or financial obligation on the part of Grand Traverse County.
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> ***"BE IT FURTHER RESOLVED***, that because newly enacted County IT Policies prohibit the maintenance of user-access credentials for private ALPR networks on county computing property, county-funded servers, investigators, and dispatch personnel are strictly prohibited from acting as a backend workforce to monitor, translate, analyze, or validate data logs generated by independently contracted, township-funded hardware networks except when explicitly routing state-validated emergency communications as detailed in the Exception Protocol of Action 1."

V. APPENDIX: STRATEGIC CONVERSION & RECONCILIATION ANALYSIS

This appendix systematically maps the conceptual principles introduced during the public comment of September 16, 2026, onto the refined, legally unassailable administrative controls established in this brief. This mapping demonstrates how the core intent of the original framework is completely preserved, hardcoded, and operationalized in a manner that is fully compliant with Michigan local government statutes.

Original Conceptual Pillar (Sept 16, 2026)	**Refined Actionable Mechanism (Revised Brief)**	**Legal, Operational & Fiscal Reconciliation**
Pillar 1: Backend Fiscal Firewall Proposed blocking network traffic at the physical county building gateway router.	**Hardware Endpoint License Ban** Shifts the restriction directly to county-owned device endpoints (MDTs and workstations).	Protects against technical evasion. Cruiser laptops bypass building gateways via standalone cellular grids (AT&T; FirstNet). Regulating physical county property under MCL 46.11(l) ensures complete coverage regardless of network routing.
Pillar 2: Zero-County-Labor Policy Attempted to police deputy behaviors and shift logs via warrantless search bans.	**Absolute Property Access Blockade** Directs IT to strip all user credentials, portal icons, and software access keys from devices.	Achieves identical labor mitigation. Under Wayne County Sheriff, the Board cannot manage daily deputy duties but holds exclusive control over property management (MCL 46.11(l)) and expenditures (MCL 46.11(g)). This blocks private corporate software from residing on county laptops.
Pillar 3: Centralized Auditing Sought to mandate external log replication and a $5,000 corporate database audit.	**Complete Asset De-authorization** Bans the procurement, storage, and usage of private ALPR access channels entirely.	Eliminates administrative overhead and financial costs. A county cannot legally force an out-of-state vendor to alter cloud logs. By completely blocking access to the platform on county property, all associated civil rights and stalking liabilities are neutralized.

Original Conceptual Pillar (Sept 16, 2026)	**Refined Actionable Mechanism (Revised Brief)**	**Legal, Operational & Fiscal Reconciliation**
Pillar 4: Intergovernmental Moratorium Sought a centralized county veto over township-level business contracts.	**Service-Level Coordination Ban** Formally alerts townships that county-funded dispatch will not support local contracts.	Respects municipal boundaries while breaking the commercial model. When local trustees realize county deputies physically cannot access the logs due to endpoint blocks, township-funded cameras become isolated and fiscally unviable.
NEW Technicality Safeguard Anti-Grant Loophole mitigates external out-of-state funding bypass.	**Comprehensive Funds Blanket Ban** Expands rider text to prohibit external grants, donations, or subsidies for prohibited ALPR software.	Bypasses corporate 'free software' penetration. Because the Board maintains explicit care and management of county property under MCL 46.11(l), it maintains absolute power to ban software installation on county hardware regardless of who funded the software license.